

IN THE HIGH COURT OF DELHI AT NEW DELHI

REGULAR FIRST APPEAL (RFA) NO. 452 OF 2026

M/S APEX INFRASTRUCTURE PVT. LTD.

Through its Managing Director

Appellant

Advocates for the Appellant: Mr. Rohan Srivastava, Sr. Adv. with Ms. Neha Gupta, Adv.

-VERSUS-

VANGUARD COMMERCIAL ENTERPRISES

Through its Authorized Signatory

Respondent

Advocates for the Respondent: Mr. Vikram Desai, Adv.

CORAM:

HON'BLE MR. JUSTICE ARVIND K. SHARMA

HON'BLE MS. JUSTICE MEENAKSHI IYER

J U D G M E N T

1. The present Regular First Appeal (RFA) has been preferred under Section 96 of the Code of Civil Procedure, 1908, challenging the judgment and decree dated 14th February 2026, passed by the Learned Additional District Judge, Saket Courts, New Delhi in CS(OS) No. 1124 of 2024. By the impugned judgment, the Learned Trial Court decreed the suit for specific performance and damages in favour of the Respondent/Plaintiff and against the Appellant/Defendant.

2. The factual matrix, as germane for the adjudication of the present appeal, is that the Appellant and the Respondent entered into a registered Lease Agreement dated 10th May 2022, in respect of commercial premises situated at Okhla Industrial Area, Phase-I, New Delhi. The lease was stipulated for a lock-in period of five years. However, on 15th

November 2023, the Appellant (Lessor) unlawfully issued a termination notice, directing the Respondent to vacate the premises within thirty days, alleging a breach of clause 7 of the agreement pertaining to unauthorized structural modifications.

3. Mr. Rohan Srivastava, learned Senior Counsel appearing for the Appellant, vehemently argued that the Learned Trial Court erred in appreciating the evidence on record. He contended that the Respondent had erected permanent brick walls without the prior written consent of the Appellant, which amounted to a material breach of the Lease Agreement, thereby entitling the Appellant to terminate the lease irrespective of the lock-in period.

4. Per contra, Mr. Vikram Desai, learned counsel for the Respondent, supported the impugned judgment and submitted that the modifications were purely temporary in nature, consisting of gypsum board partitions, which were explicitly permitted under Clause 8(b) of the agreement. He further emphasized that the report of the Local Commissioner, appointed by the Trial Court, clearly corroborated the temporary nature of these partitions.

5. We have heard the learned counsel for the parties at length and have meticulously perused the trial court record, including the pleadings, evidence led by both parties, and the impugned judgment.

6. The primary issue before this Court is whether the alterations made by the Respondent constituted a "structural modification" warranting termination under Clause 7, or were "temporary internal partitions" permissible under Clause 8(b) of the Lease Agreement. The Local Commissioner's report (Ex. PW-1/4), which remained unrebutted during cross-examination, unequivocally establishes that the partitions were made of dry-wall/gypsum boards screwed into aluminum channels, and no load-bearing walls were altered.

7. It is a well-settled principle of law, as enunciated by the Hon'ble Supreme Court in various pronouncements, that temporary alterations for the beneficial enjoyment of a commercial leased premises do not amount to a material breach justifying eviction, unless specifically prohibited by the contract. The Appellant has miserably failed to demonstrate any structural damage or permanent alteration to the demised premises.

8. In view of the aforesaid discussion, this Court is of the considered opinion that the Learned Trial Court has rightly appreciated the evidence and correctly applied the law. The termination notice dated 15th November 2023 is arbitrary, illegal, and in teeth of the lock-in

period clause of the Lease Agreement. We find no infirmity or illegality in the impugned judgment and decree dated 14th February 2026.

9. Consequently, the present appeal is devoid of any merit and is hereby dismissed. The impugned judgment and decree are upheld. Pending applications, if any, also stand disposed of.

10. No order as to costs. Decree sheet be drawn up accordingly. The Trial Court record be sent back along with a copy of this judgment.

(ARVIND K. SHARMA)

JUDGE

(MEENAKSHI IYER)

JUDGE

NEW DELHI

AUGUST 10, 2026